



DECISION

Complaint No. : POS/8991/2023/ADV-S

Name and address of the complainant : Mr. Arshad Khan,
H. No. 137, Street No. 03, Firdous Colony,
Hyderabad.

Name of the Agency Complained against : Malir Development Authority.

Name & Designation of Investigating Officer : Syed Hashim Raza Zaidi,
Advisor-S.

Vetted by : **COMPLAINT AGAINST OFFICIALS OF KDA WHO ALLEGEDLY PRESSURIZING THE COMPLAINANT TO ACCEPT RS. 150,000/= AND HANDOVER FILE OF PLOT NO. N-727, SECTOR 11-B, SURJANI TOWN PURCHASED BY COMPLAINANT FROM ONE ASIF MUMTAZ ON THE PLEA THAT SAME WAS CANCELLED BY KDA, ETC.**

Subject : **COMPLAINT AGAINST OFFICIALS OF KDA WHO ALLEGEDLY PRESSURIZING THE COMPLAINANT TO ACCEPT RS. 150,000/= AND HANDOVER FILE OF PLOT NO. N-727, SECTOR 11-B, SURJANI TOWN PURCHASED BY COMPLAINANT FROM ONE ASIF MUMTAZ ON THE PLEA THAT SAME WAS CANCELLED BY KDA, ETC.**

THE COMPLAINT:

Mr. Arshad Khan S/o. Muhammad Hanif Khan filed a complaint on 07.11.2023 alleging that he had purchased a plot No. N-727 Sector 11-B, KDA Scheme No.41 Surjani Town, Karachi for Rs. 5,25,000/- on cash on 24.06.2021 from one Mr. Muhammad Asif Mumtaz S/o. Muhammad Mumtaz. He approached the concerned officer of KDA for the transfer of the same but he was offered Rs. 150,000/= for the sale of said file of plot in question and was given threats that if he did not sell the same, the plot would be cancelled and his money invested in the plot would also be lost. He, therefore, solicited our intervention for the resolution of his problem.

PROCEEDINGS:

2. The case was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date) and matter was taken up with the Agency. In response, the Assistant Director, Construction Company Cell, KDA in his letter dated 01.12.2023 informed that the residential Plot No. N-727 measuring 65 sq. yds situated in Sector 11-B, KDA Scheme-41, Surjani Town Karachi was allotted to M/s. Tauheed Construction Company Private Limited vide Allotment Order No.118, dated 20.05.1992. The said builder allotted the said plot to Mr. Muhammad Nadeem S/o. Muhammad Ishaq which was also leased out in his name vide lease certificate No. 1372/L dated 15.03.2008. The complainant has no concern with the said plot as per this office record.
3. The complainant in his rejoinder received on 11.01.2024 reiterated the same allegation and added that some persons of Tauheed Construction Company are pressurizing/threatening him for the cancellation of allotment of his plot by the KDA if he did not sell the same.
4. The Assistant Director, Construction Company Cell, KDA in his letters dated 29.05.2024 and 11.06.2025 informed that as per office record the 242 Nos. of plots of 'N' category were allotted by the KDA in Sector 11-B, Surjani Town, Karachi to M/s. Tauheed Construction Company Private Limited vide allotment order No. 118 dated 20.05.1992 and the said plot was included in the above allotment order. Ms. Tauheed Construction Company further allotted the said plot i.e. N-727 measuring 65 sq. yds in favour of Mr. Muhammad Nadeem S/o Muhammad Ishaque and issued NOC for execution of lease in his name. Thereafter the lease of the said plot was executed in the name of Mr. Muhammad Nadeem S/o. Muhammad Ishaque vide lease Certificate No. 1372/L dated 15.03.2008 and still stands leased in his name. He added that the builder M/s. Tauheed Construction Company in their letter dated 09.06.2024 informed that both the documents of Allotment Order/Transfer letter submitted by the applicant are not genuine and seems to be fake.

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5. A copy of agency's report dated 11.06.2025 was sent to the complainant for his rejoinder vide this office letter dated 23.07.2025 followed by two reminders but he did not respond.

FINDING:

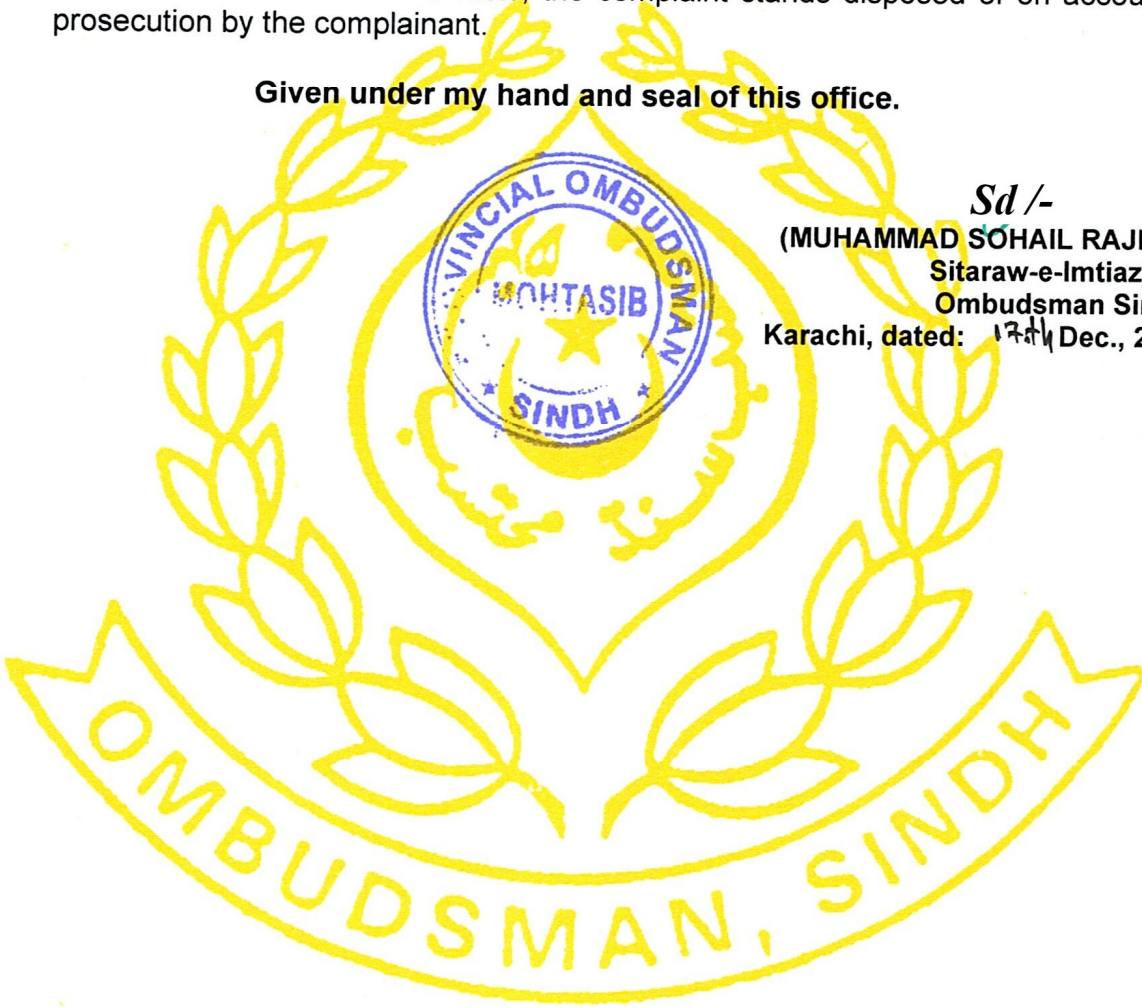
6. I have examined the case and noted that: -

- i. After thorough examination of the case, it seems that the matter is a fraud/cheating committed by the Seller namely Mr. Muhammad Asif Mumtaz S/o. Muhammad Mumtaz who sold out the plot No. N-727, Sector 11-B, KDA Scheme-41 Surjani Town, Karachi to the complainant.
- ii. No mal-administration is proved on the part of Agency and no any evidence provided by the complainant in support of his allegation. The complainant also failed to submit his rejoinder despite issuance of reminders.
- iii. The complainant is advised to approach the court of law against the seller.

DECISION:

7. In view of the above facts, the complaint stands disposed of on account of non-prosecution by the complainant.

Given under my hand and seal of this office.



Sd /-

(MUHAMMAD SOHAIL RAJPUT)
Sitaraw-e-Imtiaz, PAS
Ombudsman Sindh,
Karachi, dated: 17th Dec., 2025.